IT ANNUAL MAINTENANCE

Writing Wellness Into Code

1ST JUNE 2024 TO 31ST MAY 2025

AL DAS MEDICAL CENTER – SHORE LINE BR.
AL DAS MEDICAL CNETER – GOLDEN MILE BR.
AL DAS MEDICAL CENTER – MEADOWS BR.
ASYA'S NURSERY – SHORE LINE

SERVICE CONTRACT AGREEMENT

This contract is entered on 1st June 2024, to 31st May 2025 between, **DIGISOL L.L.C-FZ, DUBAI** (Henceforth referred to as "FIRST PARTY" in this contract)

&

AL DAS MEDICAL CENTRE Shoreline 10, Palm Jumeirah, Dubai (Henceforth referred to as "SECOND PARTY" in this contract).

CONTRACT TERMS AND CONDITIONS

1. SCOPE OF WORK

FIRST PARTY agrees to provide support and upkeep of IT equipment including PABX, Firewall, Windows OS and other Microsoft Products at 4 locations as per Annexure – A for SECOND PARTY.

On the recommendation of FIRST PARTY procurement of valid licenses of software is the responsibility of SECOND PARTY.

A. SECURITY AND DATA PROTECTION

Backup Services: The First Party agrees to provide backup services to the Second Party subject to the Second Party's consent. Backup services may be provided both on-premise and on the cloud, as per the Second Party's preference and approval. The responsibility for acquiring and maintaining backup devices or software, as well as any costs associated with cloud rental, shall be borne by the Second Party. The First Party shall advise the Second Party on suitable backup solutions but acknowledges that the ultimate decision regarding backup strategies and technologies rests with the Second Party.

Firewall Protection: The First Party shall implement and maintain appropriate firewall protection measures to safeguard the Second Party's network infrastructure against unauthorized access, malicious attacks, and other security threats. Any costs associated with firewall implementation and maintenance shall be borne by the Second Party.

Anti-Virus Software: The First Party shall deploy and regularly update industry-standard antivirus software across the Second Party's IT environment to detect and mitigate potential malware, viruses, and other malicious software. The costs related to antivirus software licensing and updates shall be the responsibility of the Second Party.

Security Monitoring: The First Party shall conduct continuous monitoring of network traffic and system logs to identify and respond promptly to any security incidents or anomalies.

Security Updates: The First Party shall ensure timely installation of security patches, updates, and firmware upgrades for all network devices and software components to address known vulnerabilities and enhance overall security posture. Any costs (if required) related to security updates and maintenance shall be the responsibility of the Second Party**.**

Incident Response: In the event of a security breach or incident, the First Party shall promptly notify the Second Party and take appropriate measures to contain, investigate, and remediate the breach in accordance with agreed-upon incident response procedures**.**

Liability and Indemnity: The First Party shall indemnify and hold harmless the Second Party against any losses, damages, or liabilities arising from a breach of network or data security obligations outlined in this agreement, except in cases of force majeure or the Second Party's negligence or misconduct."

B. SERVER MAINTENANCE

Scheduled Maintenance: The First Party shall conduct regular scheduled maintenance activities for the servers hosted on the Second Party's premises or in the cloud environment. Such maintenance shall be planned and communicated in advance to minimize disruption to the Second Party's operations.

Performance Optimization: The First Party shall optimize server performance by applying necessary updates, patches, and configurations to ensure optimal functionality and reliability**.**

Backup and Recovery: The First Party shall implement and manage backup and recovery solutions for server data, ensuring data integrity, availability, and resilience against data loss or corruption.

Hardware Monitoring: The First Party shall monitor server hardware components for performance metrics, capacity planning, and proactive identification of potential hardware failures.

Software Updates: The First Party shall install and update server operating systems, applications, and related software components to maintain security, compatibility, and performance.

Security Patching: The First Party shall apply security patches and updates to servers in a timely manner to mitigate vulnerabilities and protect against cyber threats.

Upgrade and Update Recommendations: The Second Party agrees to upgrade or update server hardware or software as advised by the First Party to mitigate potential disasters or breaches. The First Party shall not be held responsible for any consequences resulting from the Second Party's failure to implement recommended upgrades or updates.

C. OTHER IT EQUIPMENTS

Regular Maintenance: The First Party shall conduct regular maintenance and monitoring activities for other IT equipment, including but not limited to Wi-Fi routers, laptops, desktop computers and peripherals, to ensure optimal performance and reliability.

Firmware and Software Updates: The First Party shall apply necessary firmware updates and software patches to IT equipment to address security vulnerabilities, improve functionality, and maintain compatibility with the latest technologies.

Network Peripherals: The First Party shall implement and manage security measures for Wi-Fi networks, including encryption protocols, access controls, and intrusion detection systems, to protect against unauthorized access and cyber threats.

Device Configuration: The First Party shall configure and optimize IT equipment settings to meet the Second Party's operational requirements and security standards.

Hardware Replacement: In case of hardware failures or malfunctions, the First Party shall assess the need for hardware replacement or repair and provide timely resolution services to minimize downtime.

Upgrade and Update Recommendations: The Second Party agrees to upgrade or update IT equipment as advised by the First Party to ensure optimal performance, security, and compliance with industry standards. The First Party shall not be held responsible for any consequences resulting from the Second Party's failure to implement recommended upgrades or updates for IT equipment."

D. ACTIVE DIRECTORY MAINTENANCE

Regular Backups: Schedule regular backups of the AD database, including system state and individual components like Group Policy Objects (GPOs).

Monitor AD Health: Use tools like the built-in AD Diagnostic Tool (dcdiag) and other monitoring solutions to regularly check the health and performance of AD services.

User and Group Management: Periodically review and update user accounts, group memberships, and permissions to ensure they are current and adhere to the principle of least privilege.

Clean Up Stale Objects: Identify and remove inactive user accounts, computer accounts, and other AD objects to keep the directory clean and efficient.

GPO Management: Regularly review and update Group Policy Objects to ensure they are still relevant and not conflicting with each other.

Schema and Configuration Updates: Apply necessary schema updates and configurations, ensuring compatibility and stability across the AD environment.

AD Database Maintenance: Perform periodic defragmentation of the AD database using tools like NTDSUtil to improve performance and efficiency.

Password Policies: Ensure that password policies are enforced and periodically review them to align with organizational security requirements.

Disaster Recovery Plan: Develop and regularly test a disaster recovery plan specific to AD to ensure quick recovery in case of catastrophic failures.

I. Service Calls

All service calls shall be attended to without any limits on number of calls. These calls will be attended by remote access to server or workstations wherever applicable. In case of inability to provide a satisfactory remedial solution, the call will be attended to in person on site. Working days are Monday to Friday from 8:30 am to 5:30 pm. Calls received on weekends, holidays, or Government declared public holidays, shall be assumed to have been received on the next working day.

Emergency Support Services: The Service Provider shall only be obligated to provide support services outside of regular office hours for emergency situations. Emergency situations are defined as incidents where the Client's IT infrastructure is severely impacted, such as server downtime that affects the entire IT environment, critical security breaches, or other significant disruptions that require immediate attention to avoid substantial business impact. Routine or non-urgent issues shall be addressed during regular office hours as per the agreed-upon support terms. Additional hourly charges may apply for support calls outside regular office hours, and the charges will vary based on the duration and complexity of the support provided.

II. Service Logging

SECOND PARTY should initiate a service request which should be sent through either online ticketing system on "support.digisol.ae" or email to support@digisol.ae or direct call on +97142954425. FIRST PARTY Engineer would report to the SECOND PARTY technical staff before starting the work. The FIRST PARTY Engineer would complete the call by documenting a service ticket.

Parts The contract covers software and hardware labor only. Software licenses will be the responsibility of SECOND PARTY.

III. Period of Contract

The contract is valid till **June 2025.**

Contract Period: **One Year.**

The contract is renewable subject to mutual agreement to the terms and conditions.

IV. Price Review

The pricing for the support services specified in this contract may be subject to an annual price adjustment, not to exceed 15%.

The FIRST PARTY shall notify the SECOND PARTY of any proposed price increase at least 60 DAYS prior to the anniversary date of the contract.

The SECOND PARTY reserves the right to object to the proposed adjustment. The objection must be submitted in writing within 15 DAYS from the date of the notification.

V. Right to Terminate

Both the FIRST AND SECOND PARTY have the right to terminate the contract for any reason. THE PARTY deciding to terminate must notify THE OTHER PARTY at least 60 DAYS prior to the expiry date of the contract.

VI. Indemnity

SECOND PARTY shall keep FIRST PARTY indemnified against any claim on pending repairs of equipment in Annexure-A, due to non-availability of parts/modules due to obsolescence or other reasons including Force Majeure.
Force Majeure is any event which is beyond the control and without the fault or negligence of the party affected including but limited to, acts of GOD or the public enemy, war, rebellion, sabotage, riots, floods, fires, earthquakes, explosion etc FIRST PARTY would recommend SECOND PARTY, periodically or whenever due, about obsolescence of a model and/or part and would suggest alternatives. SECOND PARTY can procure the alternatives at extra cost.

2. SCHEDULE OF CHARGES

The charges for the contract would be **as per Annexure A.**

3. LAW AND REGULATIONS

Any difference or dispute arising from this contract or from agreements regarding its performance shall be settled by an amicable effort from both SECOND PARTY and FIRST PARTY. If an attempted settlement of dispute or difference has failed, the dispute / difference shall be referred to jurisdiction of Dubai Court.

In witness whereof, the parties hereto execute this contract of the day and year below written and shall remain in force until.

ANNEXURE- A

Contract for **AL DAS MEDICAL CENTRE (All Branches)**

Contract Period: **1st June 2024 to 31st May 2025**

S/No	Description	Unit	Qty	Total
01	ANNUAL IT MAINTENANCE CONTRACT for AL DAS MEDICAL CENTER – SHORE LINE BR. AL DAS MEDICAL CNETER – GOLDEN MILE BR. AL DAS MEDICAL CENTER – MEADOWS BR. ASYA'S NURSERY – SHORE LINE	30,000/-	1	**30,000/-**
	Total Contract Value (AED)			**30,000/-**

- VAT will be applied on the invoice.
- Payment for the Annual Maintenance Contract will be made on a quarterly basis.
- This agreement incorporates provisions for a potential 5% to 10% increase in the annual maintenance contract fee after one year.

DIGISOL L.L.C-FZ

Name: ABBAS HASHIM

Signature: _____

Date: 1/05/2024

AL DAS MEDICAL CENTRE

Name:

Signature: _____

Date: _____